

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE LEWIS T. BABCOCK

Courtroom Deputy: Deborah Hansen
Court Reporter: Gwen Daniel

Date: November 22, 2010

Civil Case No. 07-cv-01355-LTB-MJW

Counsel:

UNITED STATES OF AMERICA FOR THE USE AND
BENEFIT OF SUN CONSTRUCTION COMPANY, INC.,
a Colorado corporation,

Curtis R. Henry
Jeffrey C. Culbertson

Plaintiff,

and

FIDELITY AND DEPOSIT COMPANY OF MARYLAND,
a Maryland corporation,

Patrick Q. Hustead
Connor L. Cantrell

Intervenor Plaintiff,

v.

TORIX GENERAL CONTRACTORS, LLC, a Colorado
limited liability company f/k/a Alliance General
Contractors, LLC; and
ST. ANDREWS/ALLIANCE JOINT VENTURE, a joint
venture,

Bret R. Gunnell
Matthew O. Stromquist

Defendants and Counterclaimants,

and

TRAVELERS CASUALTY AND SURETY COMPANY OF
AMERICA, a Connecticut corporation,

Bret R. Gunnell
Matthew O. Stromquist

Defendants.

COURTROOM MINUTES

JURY TRIAL - Day Fifteen

09:00 a.m. Court in Session - jury present

Court's comments

The jury is present, and counsel and their parties are present.

The jury retires to resume their deliberations.

09:03 Court in Recess

10:46 Court in Session without jury

The Court reads the Question submitted by the jury.

“What was the total cost of the entire project that NIST paid to JV?”

Discussion

Counsel agree on the following written answer, “We are unable to provide you with more information than you now have. You must rely on your recollection of the evidence.”

The written answer to the question by the jury is given to the Bailiff to return to the jury.

10:50 Court in Recess

01:50 Court in Session - without jury

Court's comments

01:54 jury present

The Court reads the Verdict aloud:

SPECIAL VERDICT

JURY VERDICT FORM NO. 1

SUN CONSTRUCTION COMPANY, INC.’S (“Sun”) AND/OR FIDELITY AND DEPOSIT COMPANY OF AMERICA’S (“F&D”) CLAIMS AGAINST TORIX GENERAL CONTRACTORS, LLC and ST. ANDREWS/ALLIANCE JOINT VENTURE (“JV”) AND TRAVELERS CASUALTY AND SURETY COMPANY OF AMERICA (“Travelers”) :

We, the Jury, present our answers to the following questions submitted by the Court, and unanimously find as follows:

1. Do you find that Sun and/or F&D have proven their claims against the JV and Travelers?

YES X
NO

If your answer to Question No. 1 is YES, then answer Question No. 2. If your answer is NO, then sign this form and skip to Jury Verdict Form No. 2.

2. If your answer to Question No. 1 is YES, then enter the total amount of Sun and/or F&D's damages, in an amount of not less than \$1.00.

\$4,143,416.00

3. Enter the portion of the total amount set forth in Paragraph 2 above to which F&D is entitled pursuant to its assignment/subrogation claim.

\$1,300,000.00

Dated this 22 day of November, 2010.

Signed by all members of the Jury.

JURY VERDICT FORM NO. 2

TORIX GENERAL CONTRACTORS, LLC'S and ST. ANDREWS/ALLIANCE JOINT VENTURE'S ("JV") CLAIMS AGAINST SUN CONSTRUCTION COMPANY, INC. ("Sun") AND/OR FIDELITY AND DEPOSIT COMPANY OF AMERICA ("F&D"):

We, the Jury, present our answers to the following questions submitted by the Court, and unanimously find as follows:

1. Do you find that the JV has proven its claims against Sun?

YES
NO X

If your answer to Question No. 1 is YES, then answer Question No. 2. If your answer is NO, then sign this form.

Dated this 22 day of November, 2010.

Signed by all members of the Jury.

The jury is polled; all answer affirmatively.

ORDERED: The Jury Verdict is RECEIVED.

Court's concluding comments and remarks to jury.

02:04 jury excused.

ORDERED: Judgment shall enter on the Verdict.

Mr. Hustead's comments

Discussion

ORDERED: Sun and F&D have 30 days to file a motion for attorneys' fees, costs and interest under the contract. The Joint Venture has 20 days to respond. Sun and F&D have 14 days to reply.

Mr. Gunnell's comments

The Joint Venture intends to make a motion for judgment notwithstanding the Verdict.

ORDERED: The Joint Venture has 30 days to file its motion for judgment notwithstanding the Verdict; responses are due in 20 days; and the reply is due in 14 days.

Further discussion

The prevailing parties stipulate to the prejudgment interest date of October 11, 2008.

Mr. Gunnell's comments

The Joint Venture does not agree that prejudgment interest should attach to this Verdict.

02:13 p.m. Court in Recess
Trial concluded.
Time: /30